

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

PKDC, LLC	X	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No. 24-21
	:	
CMA CGM S.A.	:	:
	:	
Respondent.	:	
	X	

CONSENT MOTION FOR ENTRY OF PROTECTIVE ORDER

Respondent CMA CGM SA (“CMA” or “Respondent”), with the consent of Complainant PKDC, LLC (“PKDC” or “Complainant”), hereby moves pursuant to Rule 141(j) of the Commission’s Rules of Practice and Procedure, for entry of a protective order in connection with the above-captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive. A proposed protective order is attached for consideration by the Presiding Officer. The parties have agreed to the terms of the Protective Order. Complainant’s counsel consents to Respondents’ motion for entry of the Protective Order.

Dated: February 7, 2025

Respectfully submitted,

/s/ Wayne R. Rohde
Wayne R. Rohde
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2001 M Street NW
Suite 500
Washington, DC 20036
Telephone: (202) 463-2507
COUNSEL FOR RESPONDENTS
CMA CGM SA

PROTECTIVE ORDER

Upon stipulation of Complainant PKDC LLC (“PKDC” or “Complainant”), and Respondent CMA CGM S.A. (“CMA CGM” or “Respondent”), the Parties, through their respective attorneys, and in order to expedite the exchange of certain confidential information, hereby submit the following proposed Protective Order (the “Order”) to the Presiding Officer for due consideration and issuance:

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the Presiding Officer, this Order shall apply to all documents, answers to interrogatories, answers to requests for admissions, responses to requests for production of documents, responses to subpoenas, deposition transcripts and exhibits, expert materials, or other writings produced, given or filed in this action, and all information derived from any of the foregoing, that are designated as “Confidential” or “Attorneys Eyes Only” in accordance with the terms of this Order.
2. A party (or producing non-party) may designate as “Confidential” any information that is commercially sensitive and is not publicly known, including information provided by third parties to the producing party or non-party with the expectation that the information remain confidential (“Confidential Information”). Confidential Information subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party or non-party or with prior order of the Presiding Officer, Confidential Information and any information derived therefrom may only be disclosed to:
 - a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;

- b. any officers before whom any deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this proceeding;
 - c. any person(s) who created or previously received the Confidential Information;
 - d. the Presiding Officer and members and employees of the Federal Maritime Commission involved in rendering a decision in this matter (the “Commission”);
 - e. non-party consultants or experts engaged by either Party or their counsel in connection with the prosecution or defense of this action (“Experts”) and non-party deposition or trial witnesses, subject to Paragraph 6 hereof.; and
 - f. any other person the parties have agreed to in advance in writing.
3. A party (or producing non-party) may designate as Attorneys Eyes Only (“AEO”) any information or material whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the producing party or non-party’s competitive business interests or the competitive or privacy interests of the producing party or non-party’s suppliers, service providers, customers or clients, or of an individual party in this proceeding. AEO material subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party or non-party or with prior order of the Presiding Officer, AEO material and any information derived therefrom may only be disclosed to:
- a. counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff and printing, copying, and electronic discovery vendors;

- b. any officers before whom any deposition in this action is taken, including stenographic reporters, videographers, and any necessary secretarial, clerical, or other personnel of such officers engaged for the preparation of verbatim transcripts and/or recordings in this proceeding;
 - c. any person(s) who created or previously received the AEO material;
 - d. the Presiding Officer and members and employees of the Commission involved in rendering a decision in this matter; and
 - e. Experts and non-party deposition or trial witnesses, subject to Paragraph 6 hereof.
4. Information shall be designated by the producing party or non-party as Confidential Information or AEO in the following manner:
- a. in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents, response to subpoena, expert report, or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label “Confidential” or “Attorneys Eyes Only” / “AEO” on the face thereof at the time of production or copying;
 - b. in the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, by noting the designation on the record at the time of the deposition, or within thirty business days after receipt of the deposition transcript. The transcript pages and any associated documents containing confidential information shall be bound separately and shall contain on each page, including the cover page, an appropriate notation identifying it as “Confidential” or “Attorneys Eyes Only” / “AEO”.

- c. all Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5 and paragraphs 20-27 of the Initial Order entered in this case on May 16, 2024 4, 2023; and
 - d. in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which procedures shall be consistent with those specified in subparts (a) – (c) of this paragraph 4.
- 5. It is the responsibility of all persons receiving materials containing Confidential Information or AEO material that is properly marked to maintain such materials in a secure and appropriately identified manner.
- 6. It is the responsibility of counsel for each party to this action to ensure that those receiving Confidential Information or AEO material properly marked pursuant to this Order have knowledge of the terms of this Order and agree to be bound by them. Prior to any such disclosure, recipients who are approved pursuant to paragraph 2 (f) above must read and agree in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient's written acknowledgment shall be kept by the party divulging the Confidential Information or AEO material.
- 7. When serving any discovery request or subpoena upon a non-party, it shall be the obligation of the party requesting such discovery from a non-party to include a copy of this Order when said discovery request or subpoena is served upon the non-party.
- 8. Any producing party or non-party may designate any discovery material containing Confidential Information or AEO material that it inadvertently produced without the

appropriate confidentiality designation by providing written notice to counsel for all parties identifying the particular discovery material that should have been designated as “Confidential” or “Attorneys Eyes Only” / “AEO”. Such notice must be provided within a reasonable time following the producing party or non-party’s discovery that it produced the discovery material subject to such notice without the appropriate confidentiality designation(s).

9. The designation of information as Confidential or AEO by the producing party or non-party shall not waive or affect in any way the right of the receiving party to contest the designation of confidentiality. The designation of confidentiality may be contested as follows:
 - a. Counsel for the parties shall confer in a good faith effort to resolve any differences.
 - b. Failing agreement of the parties, the party objecting to the designation of information as Confidential or AEO may file an appropriate motion with the Presiding Officer and shall (1) certify that s/he has sought in good faith to confer with opposing counsel and has been unable to resolve the dispute by agreement; and (2) identify by specific category or document number the information for which relief is sought.
 - c. Within ten business days of receiving such a motion, the opposing party or non-party shall respond to the motion by showing with particularity with respect to each challenged item of Confidential or AEO information, the reasons why such information has been properly designated as Confidential or AEO.
 - d. The burden of establishing that information is Confidential or AEO shall be on the party or non-party designating it as such.
 - e. If a response is timely made as provided in subparagraph (c) above, until the motion is ruled upon by the Presiding Officer, the designation of confidentiality

shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order.

10. The production or disclosure of Confidential Information or AEO material shall in no way constitute a waiver of any sort, including of: (a) any producing party or non-party's right to object to the production or disclosure of other information in this proceeding or in any other proceeding; (b) any objections to discovery or admissibility that any producing party or non-party or receiving party may assert; or (c) the parties' ability to use their own documents, communications, information, or testimony.
11. Nothing herein shall be deemed to waive any attorney-client privilege, attorney work product protection, or similar protection recognized by applicable law, or be deemed an admission as to the admissibility in evidence of any facts, documents, communications, information, or testimony revealed in the course of discovery in this proceeding. In particular, any production of attorney-client privileged, attorney work product, or similarly protected discovery material does not constitute a waiver of any claim of privilege, work product, or other similar protection. A receiving party shall not argue that such a production constitutes a waiver of privilege, work product, or other similar protection and shall promptly return any such inadvertently produced privileged, work product, or similarly protected discovery material upon notification or discovery of the inadvertent production and shall not use the privileged, work product, or other similarly protected information contained therein for any purpose other than to challenge whether such material is protected by the attorney-client privilege, the attorney work product doctrine, or other similar protection, in which case the discovery material being challenged shall be treated as if designated "Attorneys Eyes Only" / "AEO" until such time as the Presiding Officer rules on the privilege protection.
12. If Confidential Information or AEO material in the possession of the receiving party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority to subpoena such information, the party to whom the

subpoena is directed shall give written notice of the subpoena (including the delivery of a copy thereof) to counsel for the party or non-party that produced the information or documents promptly after the receipt of the subpoena. In the event that the subpoena purports to require production of such Confidential or AEO information on less than 7 days' notice, the party to whom the subpoena is directed shall give immediate email notice of the receipt of such subpoena, and forthwith deliver a copy thereof, to the attorney for the producing party or non-party.

13. Within thirty days after the conclusion of this proceeding, including any appellate proceedings, all Confidential and AEO information (including copies and documents containing information derived therefrom) shall be destroyed or returned to the producing party or non-party, at the election of the receiving party, provided that documents previously filed with the Commission containing such information may either be destroyed or retained under seal and preserved as confidential in accordance with the terms of this Order.

14. The provisions of this Order shall survive and remain in full force and effect after the conclusion of this proceeding, including any appellate proceedings.

SO ORDERED,

Dated: _____, 2025

Erin M. Wirth
Chief Administrative Law Judge

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PKDC LLC	:	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No.: 24-21
	:	
CMA CGM S.A.	:	
	:	
	:	
Respondent.	:	
-----X		

The undersigned, having been requested to assist in connection with the above captioned matter hereby agrees as follows:

1. I have read the Protective Order entered in this proceeding and agree to abide by its terms.
2. I agree that any Discovery Material designated as “CONFIDENTIAL,” “ATTORNEYS’ EYES ONLY” and/or “AEO” which I see, hear, or learn about in connection with this proceeding, including documents and deposition transcripts, may be used solely for the purpose of this proceeding and not for any other purpose. I agree not to disclose to any person any such Discovery Material designated as “CONFIDENTIAL,” “ATTORNEYS’ EYES ONLY” and/or AEO except as specifically authorized by the Protective Order.
3. When this litigation is terminated, either by expiration of the time to appeal or after issuance of the appellate mandate after an appeal, I agree to return to the party and lawyers whom

I am assisting, any Discovery Material and information designated as “CONFIDENTIAL,”
“ATTORNEYS’ EYES ONLY” and/or AEO or to destroy all such Discovery Material.

Dated this _____ day of _____, 2025
